

HOUSE No. 2271

The Commonwealth of Massachusetts

PRESENTED BY:

William C. Galvin, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to non-criminal dispositions of municipal bylaws and acts of nature.

PETITION OF:

NAME:

Steven Merrill

DISTRICT/ADDRESS:

DATE ADDED:

1/14/2025

HOUSE No. 2271

By Representative Galvin of Canton (by request), a petition (accompanied by bill, House, No. 2271) of Steven Merrill relative to municipal bylaws for prevention of damage from certain trees. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to non-criminal dispositions of municipal bylaws and acts of nature.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 21 of chapter 40 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 6, the words “three hundred dollars”
3 and inserting in place thereof the following words:- \$1000.

4 SECTION 2. Said section 21 of said chapter 40, as so appearing, is hereby further
5 amended by inserting after clause (24) the following clause:-

6 (25) For preventing damage from the falling of unhealthy, damaged, dying, hazardous or
7 neglected trees, within such portions of their limits and to such extent as they deem expedient.
8 The penalty for a violation of such ordinance or by-law shall apply to the owner of the property
9 on which the tree stood prior to its fall, or to their agent having the care thereof. Any fines
10 recovered pursuant to this clause in accordance with section 21D shall be paid as restitution to
11 the person aggrieved by the violation of this clause; provided, that if no specific person was
12 aggrieved by the violation, the fines recovered shall be paid to the municipality.

13 SECTION 3. Section 21D of said chapter 40, as so appearing, is hereby amended by
14 striking out, in line 46, the words “three hundred dollars” and inserting in place thereof the
15 following words:- \$1000.